

DUI / DWI



For many people, being charged with a DUI is their first actual encounter with law enforcement and the criminal justice system. DUI arguably affects the greatest variety of people, many of whom did not believe they were committing a crime. Regardless of income or social status, DUI law is strongly enforced by authorities. DUI conviction is unique in nature because it can be based solely on a police officer's opinion.

In Tennessee, a .08% or higher blood alcohol level will classify you as driving under the influence "per se." This means that even if you have a high tolerance for alcohol and are not impaired to drive, you are automatically considered to be under the influence. Although being convicted of an alcohol related driving offense in Tennessee is generally a misdemeanor, it stays on your record for life and should not be taken lightly.

If you are convicted of DUI, the consequences are serious. Typically, your first DUI conviction is guaranteed to get you at least 48 hours minimum in jail with a maximum jail time of 11 months 29 days. However, if your blood alcohol level is over .20% while driving, you will face a minimum of 1 week in jail. At a minimum, you will be required to pay \$350 – \$1500 in fines and court costs, lose your drivers license for one year, be required to have an interlock device installed in order to obtain a restricted drivers license, be required to perform a mandatory 24 hours of highway litter removal, be forced to enroll in an court approved educational DUI course, pay higher driver's insurance SR-22 rates, and possibly lose your job. A second conviction will normally result in loss of license for 2 years, 45 days in jail, and fines up to \$3500. Additionally, you could lose your vehicle. An ignition interlock device will have to be placed in your vehicle to obtain a restricted license.

Many variables can seriously affect the information that the police officer used to form the opinion of whether or not you are under the influence. These include but are not limited to the test surface, weather conditions, wind conditions, highway traffic, external lighting or lights, your age, your weight, certain medical conditions, and shoes worn. Additionally, if a blood or urine sample was taken from you, there must be a proper chain of custody regarding testing.

You need a DUI attorney who will thoroughly question police and experts that are testifying against you. You need a DUI attorney who will work hard to prove your innocence and not simply show up so you can plea out. You need a DUI attorney who will do their best to have improper evidence used against you thrown out and ask for reduced charges or possibly a case dismissal. You are innocent until proven guilty and need a lawyer who will treat you as such.

Please contact me for a free consultation regarding your DUI charge or charges. I will look in to every aspect of the charges against you, keep you properly informed of all matters, and utilize all available defenses on your behalf.